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TURKEY

Human Rights Developments

The Turkish government failed to build on the very modest progress of the preceding two years. Apparently genuine intentions to enact reform were not turned into practical measures permanently to ungag journalists, release prisoners of opinion, protect detainees from torture, or account for the "disappeared." Government ministers seemed to be hostages to the system they nominally controlled while progress was impeded by vested interests within the state and in particular the military, still an overriding political force. The chief of general staff openly instructed the government that leftist separatism and political Islam are the principal public enemies of Turkey. Political parties and organizations reflecting these beliefs were prosecuted or closed down, and their members detained, ill-treated, or otherwise harassed.

High-ranking judges eloquently condemned the judiciary's lack of independence and the flawed constitution imposed by the military in 1982. They also criticized the prosecutions and imprisonments arising from laws which conflict with Turkey's obligations under the European Convention on Human Rights. Intense debate on human rights was stimulated when Abdullah Ocalan was brought to Turkey in February, and throughout his subsequent trial, but the limits to free expression constrained argument on the political, cultural, and language rights of the Kurdish minority.

Brutal punitive security operations, marked by allegations of torture and extrajudicial execution, were carried out in the cities and countryside, though less frequently than in recent years. This reflected a lessening in activity by armed opposition groups. Death in police detention persisted because the government failed to take the key steps to combat torture.

In January, President Demirel asked B\lent Ecevit, leader of the Democratic Left Party (DSP) and caretaker prime minister since November, to form a new government, pending elections which took place in April. No party won an overall majority, but the DSP and the extreme right-wing National Action Party (MHP), both strongly nationalist, formed a coalition, with B\lent Ecevit continuing as prime minister and the Motherland Party (ANAP) as a third partner.

The conflict between the Kurdish Workers' Party (PKK) and government forces has shaped Turkish political history since 1984 and therefore the capture and trial of Abdullah Ocalan, leader of the PKK, was the dominating fact of the year. Expelled from Syria in November, he soon thereafter appeared in Italy, where he stayed until January, when he was allowed to flee Italian custody. He was finally abducted from Kenya by Turkish special forces in February and transported to Turkey to stand trial.

Abdullah Ocalan was charged with treason and tried at a special annexe of Ankara State Security Court established, for reasons of security, on Imrali island in the Sea of Marmara. The investigation and trial did not meet international standards. The initial interrogation contravened Turkish and international law, and the prisoner's access to legal counsel was unsatisfactory. International human rights organizations criticized the presence of a military judge on the panel that would preside over Ocalan's trial, pointing out that this had been criticized by the European Court of Human Rights (*Incal v. Turkey* , 1998) as a breach of the right to a fair and independent tribunal. In June, the Turkish constitution was changed to remove the military judge from security court trials, including Ocalan's.

In June, Abdullah Ocalan was sentenced to death under Article 125 of the Turkish Penal Code, pending appeal. Turkey has not carried out a death sentence since 1984.

In September, the PKK announced its intention to abandon the armed struggle. As of this writing, it was unclear whether or not this declaration would be implemented.

International governmental organizations (and some commentators within Turkey) urged the Turkish government to take advantage of the capture of Abdullah Ocalan and recent military success against the PKK as an opportunity to grant political, cultural, and language rights to the Kurdish minority. However, no progress was made on language or cultural rights. During the course of Abdullah Ocalan's trial, the People's Democracy Party (HADEP), a legal political party with a mainly Kurdish membership viewed by the authorities as close to the PKK, was subjected to repeated brutal police raids.

HADEP narrowly escaped closure by the Constitutional Court on grounds of "separatism" prior to the April elections, when electorate and candidates were subjected to severe intimidation. Ballots cast for HADEP were destroyed in at least one constituency. The party failed to secure any parliamentary seats but gained control of thirty-seven local authorities in the southeast, including Diyarbakir.

In February, the Democratic Mass Party (DKP), another party with a largely Kurdish membership, was the fifteenth political party to be closed down by the Constitutional Court since Turkey returned to civilian rule in 1983. The party's program (which urged recognition of minority rights within the existing state of Turkey) was deemed to have included separatist propaganda.

In May, the Constitutional Court prosecutor brought an action to close the Islamist Virtue Party (Fazilet), successor to the Welfare Party (Refah) which was closed in January 1998. This initiative was precipitated by newly elected Fazilet deputy Merve Kavakci's attempt to take her parliamentary oath while wearing a full headscarf. Although there was no legal basis to deny her the right to wear a headscarf within the parliament building, her action was denounced by the prime minister as an affront to the secular state, and she was unable to take her oath. Regulations barring university students, civil servants, lawyers, and judges from wearing the headscarf while on government premises were made more restrictive and applied more widely. Those who protested headscarf restrictions risked prosecution. In March, Sadi Carsancakli, lawyer and president of the Istanbul branch of Mazlum-Der, was indicted for "incitement" at Istanbul State Security Court under Article 312 of the Turkish Penal Code, along with sixteen women and several journalists, for organizing and participating in a nationwide nonviolent demonstration against the headscarf restrictions in October 1998.

In March, Fazilet mayor of Istanbul Recep Tayyip Erdogan, sentenced to ten months of imprisonment under Article 312, went to prison. His offense had been to read a few lines from a poem which contained no advocacy of violence and which had, in fact, been approved by the Education Ministry. He was released in July, with remission, but the conviction results in a lifetime political ban, apparently the chief motivation for the prosecution.

Political influence over the judicial process and constraints on free expression were strongly criticized by two high-ranking judges. In March, the president of the Constitutional Court Ahmet Necdet Sezer stated that the constitution imposed unacceptable restrictions on the basic freedoms of Turkish citizens-including limits on language rights-and called for harmonization of Turkish domestic law with the European Convention. In September, at the official opening of the judicial year and in the presence of the president and prime minister, the president of the Appeal Court Dr. Sami Selcuk rated the legitimacy of the constitution as "almost zero" and expressed the hope that Turkey would not enter the 21st century under a regime which continues to "crush minds and stifle voices." Those present applauded the speech but neglected to take steps to remedy the shortcomings of the constitution or lift the legislation limiting expression. In May, Prime Minister and former newspaperman Bulent Ecevit expressed regret when journalist Oral Calislar was sentenced to twenty months of imprisonment under Article 8 of the Anti-Terror Law for conducting interviews with Kurdish political leaders, but his administration's only gesture towards freedom of expression was, in September, to suspend for three years all sentences imposed on writers and broadcasters.

Even this unsatisfactory measure, which resulted in the release of about a dozen journalists and writers, did not apply to those who had been prosecuted for public speeches.

Esber Yagmurdereli, a lawyer who has been in prison since June 1998 because of a speech he made at an HRA meeting in 1991, therefore remained in Cankiri prison. As a result of a 10-month sentence under Article 8 of the Anti-Terror Law he lost remission on an earlier life sentence imposed by a martial law court after an unfair trial, and has twenty-two more years to serve.

Local courts confiscated newspapers and books almost daily. Mehmet's Book - soldiers who have fought in the southeast tell their stories by journalist Nadire Mater, for example, was confiscated in June by an Istanbul court for "insulting the armed forces."

Torture was widespread. Detainees accused of theft and other common criminal offenses reported torture, and in one case died in police custody. As in previous years, those interrogated for offenses under the Anti-Terror Law were particularly at risk. Many detainees reported sexual assault and there were three allegations of rape in custody. Muzaffer Cinar, a HADEP official, was detained in July and interrogated in incommunicado detention for eight days at Siirt police headquarters on suspicion of supporting the PKK. After his release without charge, he reported that had been beaten, that his testicles been pulled using a noose, that he had been suspended by the arms and hosed with cold water under pressure. He stated that police officers detained his wife and threatened to rape her. Medical and photographic evidence of widespread grazing and bruising corroborate his account. At the time of writing, no prosecution had been opened against the alleged torturers.

There were seven reported deaths in custody during the year. Suleyman Yeter, dockers' union official and one of nineteen plaintiffs in an ongoing trial of eight police officers who had allegedly tortured and raped detainees in 1997, was again detained during a police raid on the magazine Dayanisma (Solidarity) in March. He died during the third day of incommunicado interrogation at Istanbul police headquarters. While the chief of police announced that "preliminary findings indicate a heart attack," medical examination revealed that Suleyman Yeter had wounds on both sides of his head and to his chin, and extensive bruising to the rest of his body. At the time of writing, no charges had been issued related to his death.

One of the first actions of B\lent Ecevit's new government was to issue a circular announcing that priority would be given to human rights and warning that police stations would be subject to impromptu checks. Unfortunately, the urgent and energetic supervision promised in the circular failed to materialize. Blindfolding continued to be routine, and safeguards for the protection of children in custody were frequently ignored. Incommunicado detention, condemned by United Nations (U.N.) and Council of Europe specialists as a major factor in torture, was not abolished.

There were no verified reports of "disappearance," but the authorities continued to ignore demands for investigation of the pattern of "disappearances" from the mid-1990s. The Saturday Mothers, relatives of the "disappeared" who who have held a vigil in Istanbul every Saturday since 1995, were finally forced off the street in May by weekly detentions, harassment, ill-treatment and prosecution on manifestly trumped up charges. Meanwhile, the European Court of Human Rights continued to investigate outstanding cases. In July, it found the Turkish government responsible for the torture and death of Ahmet Cakici, who "disappeared" in the custody of gendarmes in Diyarbak^r province in 1993, and in September, the court visited Turkey to question witnesses to the "disappearance" of Kenan Bilgin at Ankara police headquarters in 1994.

Cases of ill-treatment in prisons mainly arose when police or gendarmes were permitted access to prisoners during times of unrest, or when transferring prisoners to other prisons, to the hospital, or to court. There were reports from a number of prisons, including the newly opened Soganlik Special Closed Prison in Istanbul, that inmates were held in small-group isolation, known to be a threat to prisoners' mental and physical health. At Soganlik prisoners held under the Anti-Terror Law are kept in a social and physical environment that is drastically limited and monotonous with no out of cell time. Human Rights Watch, while recognizing that the Turkish prison system's move away from traditional large wards may have benefits for the prison population, urged the Justice Ministry not to impose small-group isolation on any class of prisoners.

Compared to past years, there were fewer reports of attacks on civilians and killing of prisoners by illegal armed organizations. Following the death sentence imposed upon its leader, the PKK carried out "punitive" bombings and other attacks which claimed civilian lives. PKK members machine-gunned a right-wing cafe in Elazig in July killing Ferhan Bulut, Sukru Tuna, Idris Yeter and Bilal Comert. The organization formally called off such attacks later that month.

Defending Human Rights

Human rights workers were harassed, ill-treated, prosecuted, and obstructed in their legitimate activities. In February, the Office of the Chief of General Staff made a public statement that human rights were partial and operated as a wing of armed organizations. Similar groundless accusations had provoked an attack on Akin Birdal, president of the Human Rights Association, in 1998, as a result of which he remains partially paralyzed. His imprisonment this year was a grave shock and affront to the human rights community. Akin Birdal was convicted under Article 312 of the Turkish Penal Code for a 1996 speech referring to "the Kurdish people" and began serving a one year sentence in June. Akin Birdal forfeited his HRA presidency and served three and a half months in prison until his sentence was suspended on health grounds in September.

The Diyarbakir HRA branch remained closed on the orders of the local governor for the third successive year. The Gaziantep branch was temporarily closed for three months in July. The Bursa branch reopened in June after having been closed for seven months because it had hosted a hunger strike, and the Sanliurfa branch re-opened after closure for more than a year, when the appeal court overturned the local governor's decision that the branch had exceeded the terms of its statute.

Three Izmir HRA members and its president Ercan Demir were convicted of holding an "unauthorized demonstration" by making a press statement about unrest in a local prison in 1996 and sentenced to terms of imprisonment of more than a year. They are at liberty, pending appeal.

Other human rights organizations were also targeted. In January, the Sanliurfa branch of the Association for Human Rights and Solidarity with the Oppressed (Mazlum-Der) was closed indefinitely on the order of the local governor, pending the outcome of a prosecution for a calendar which allegedly contained statements insulting to the organs of state. Their Malatya branch was closed in May and other branches were raided by police.

In September, Mehmet Ali Irtemcelik, state minister responsible for human rights, made a public statement that seemed to promise a change of approach, when he expressed a wish to "strike a sound and honest communication" with nongovernmental organizations (NGOs) dealing with human rights. As of this writing, it was unclear whether or not this represented a genuine new initiative.

The Role of the International Community

The capture, trial, and sentencing of Abdullah Ocalan provoked responses from many governments and was intensely scrutinized by international governmental organizations.

In March the European Committee for the Prevention of Torture visited Abdullah Ocalan on Imrali island to examine the conditions of custody and methods of interrogation. The committee was satisfied that he was not being subjected to torture, but raised concern about his access to legal counsel and the isolated character of his confinement.

The European Parliament, the European Union, the Parliamentary Assembly of the Council of Europe, and the United Nations High Commissioner for Human Rights sent delegates to attend Ocalan's trial. When the court handed down a death sentence, the Parliamentary Assembly of the Council of Europe reminded President Demirel that in 1997 he had joined other heads of state in a pledge to abolish the death penalty.

Council of Europe

The political, investigative, and judicial arms of the Council of Europe were closely and actively engaged with human rights developments in Turkey.

The Turkish government finally gave permission for publication in February of the report of the European Committee for the Prevention of Torture on the committee's visit to Turkey in October 1997. This represented a significant acknowledgement of the problem of torture, and progress towards openness - though several other reports remained unpublished. The report confirmed that Turkey was "moving in the right direction" but regretted that the committee had, as in previous visits, received many reports of torture, corroborated in some cases by medical evidence. In March, the Turkish authorities also gave the committee permission to publish observations from its visit that month to Abdullah Ocalan (see above). During that visit, the committee also inspected Istanbul police headquarters and reported in a tone of some exasperation that it had again found credible evidence that torture was still being inflicted there.

In an unprecedented resolution in June, the Committee of Ministers censured Turkey for "repeated and serious violations" committed by its security forces, and expressed impatience that there had been "no significant improvement."

As of September, over nine thousand petitions against Turkey were under consideration by the European Court of Human Rights. The court handed down decisions in a series of cases representing a wide variety of violations committed by the Turkish authorities: violations of freedom of speech, imprisonment for expression of nonviolent opinions, and violations of the right to life, including one "disappearance" case.

European Union

In November, the European Union (E.U.) Commission produced its first regular report on Turkey's progress towards accession. The commission commented on the "persistent violations of human rights," the "great failings in the way minorities are treated" and the "lack of real civilian control over the army."

In March, in response to an influx of asylum seekers from Iraq and surrounding countries, the European Parliament passed a resolution which referred to the instability caused by Turkish incursions into Northern Iraq, and called for the Turkish government to "seek a political solution to the Kurdish problem."

In June, the E.U. presidency condemned the imprisonment of Akin Birdal and called for the sentence to be deferred at least on humanitarian grounds in view of his poor health.

Significant differences between the E.U. and Turkey on issues that include Turkey's human rights record kept Turkey outside the E.U. enlargement process.

United Nations

Two thematic mechanisms published their reports on visits to Turkey made during 1998. The findings of the special rapporteur on torture complemented those of the European Committee for the Prevention of Torture. The extent of torture was unambiguously stated as "widespread" and in some areas "systematic," to the extent that it is a pervasive technique used "regardless of approval or disapproval at higher levels of the public service." The report of the U.N. Working Group on Enforced and Involuntary Disappearances, by contrast, was disappointing. Relatives of the disappeared had hoped that the working group's visit would uncover the truth in at least a small number of individual cases, and draw some conclusions about the general pattern. Instead, the working group failed to make a clear determination in a single case - even where there was a strong body of evidence of security force responsibility. Its description of the volume of reported disappearances in Turkey (not less than a hundred in the 1990s and perhaps several hundred) as "relatively low" betrayed a certain complacency in their approach.

The Organization for Security and Cooperation in Europe (OSCE)

In March, at the Permanent Council in Vienna, the Representative on Freedom of the Media Freimut Duve urged Turkey to adopt "a more liberal attitude" in the application of laws currently used to

inhibit political discussion, but expressed appreciation of Turkey's otherwise energetically pluralist media landscape.

As of this writing, Turkey was planning to host the OSCE's Summit of heads of state and government in Istanbul in mid-November. Officials of the OSCE's member states expressed the hope that the summit would prove a catalyst for needed reform in Turkey.

United States

In various statements, the United States government contrasted the Turkish authorities' public commitment to respect for human rights with their lack of determination to combat persistent and serious violations. The State Department's Country Reports on Human Rights Practices for 1998 communicates the "substantial but indirect influence" exercised by the military over politics and its role in inhibiting free expression in Turkey. The report reflects the breadth and gravity of violations committed by government security forces, from torture and forcible evacuation to extrajudicial execution, and shows how those who torture or kill in the name of the state escape prosecution. Assistant Secretary of State for Democracy, Human Rights, and Labor, Harold Hongju Koh stated, during a tour of Turkey in August, that there could be "no purely military solution to Kurdish issues. Any enduring solution must lie in the expansion of democracy, and in bold and imaginative political, social, and economic measures to foster full democratic political participation for all of Turkey's citizens and to promote broader freedom of expression on the Southeast." This view met bitter criticism and warm praise from different quarters of the media. Harold Koh visited Ankara Central Closed prison to meet the Kurdish former member of parliament Leyla Zana where she is serving a fifteen year sentence on charges of separatism, and also Ak^n Birdal.

U.S. Congress approved delivery, beginning in July, of fifty Sikorsky S-70 Black Hawk utility helicopters. This class of helicopter has been used to commit human rights violations in Turkey, including "disappearance." Human Rights Watch pressed the U.S. government to insist that effective systems are put in place to ensure end-use monitoring of this equipment.

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